



Real Estate Services Agreement

This Real Estate Services Agreement is between KBC-WA, LLC, a Washington limited liability company ("**Broker**" ("**Broker**") and Verrus, LLC, a Delaware limited liability company ("**Client**") and is dated 2/28/2025 (the "**Effective Date**").

The purpose of this Agreement is to set forth the terms and conditions under which KBC is to provide real estate brokerage services to Client in connection with Client's potential purchase or leasing of real estate.

The parties therefore agree as follows:

1. **Appointment.** Client hereby appoints Broker as Owner's sole agent and grants to Broker the exclusive right to represent Client in the potential purchase or lease of properties in the markets listed on the attached **Exhibit A**. Broker hereby accepts the appointment on the terms provided in this Agreement. Broker's authority is limited to performing the services set forth in this Agreement in accordance with the terms of this Agreement, and in doing so, Broker shall provide the services set forth on the attached **Exhibit B**. Broker does not have any authority or right to execute or otherwise make any contracts or agreements on behalf of Client or to assume or create any liability or obligation on behalf of Client.
1. **Term.**
 - 1.1 The term of the Agreement commences on the Effective Date and will expire 12 months after the Effective Date. Thereafter, the term of the Agreement will automatically renew for additional periods of 12 months unless either party gives written notice of non-renewal at least 30 days before the scheduled expiration of the Agreement.
 - 1.2 Following the expiration of the Initial Term, Owner or Broker may terminate this Agreement at any time without cause upon not less than 30 days' prior written notice to the other party.
2. **Compensation.** Except as set forth on **Exhibit A**, Broker's sole compensation for its services shall be Broker's share of commissions paid by the owner or landlord of properties purchased or leased by Client, and Broker shall look solely to commissions paid by seller or landlord of any property purchased or leased by Client. Client shall require that the seller or landlord of any property purchased or leased by the Client shall pay commissions to Broker as set forth on **Exhibit A**.
2. **Dual Representation.** Client agrees that Broker and its affiliates may act as brokers representing potential landlords and tenants and consents to such dual representation, provided Broker timely discloses any such dual representation to Client.
3. **Licenses.** Broker represents that it possesses all licenses and registrations required by the state in which the Property is located for the performance of the services set forth in this Agreement and agrees to maintain such licenses/registrations in full force and effect throughout the Term of this Agreement.

4. **OFAC.** Each party represents to the other that it, and all persons and entities owning (directly or indirectly) an ownership interest in it: (a) are not, and will not become, a person or entity with whom a party is prohibited from doing business under regulations of the Office of Foreign Asset Control (“**OFAC**”) of the Department of the Treasury (including, but not limited to, those named on OFAC’s Specially Designated and Blocked Persons list) or under any statute, executive order or other governmental action; and (b) are not knowingly engaged in, and will not knowingly engage in, any dealings or transactions or be otherwise associated with such persons or entities described in clause (a) above.

5. **Anti-Bribery & Corruption.** Each party represents to the other that it (and any party acting on its behalf) has not, in order to enter into this Agreement, offered, promised, authorized or made any payments or transfers of anything of value which have the purpose or effect of public or commercial bribery, kickbacks or other unlawful or improper means of doing business (“**Prohibited Activity**”) and will not engage in Prohibited Activity during the term of this Agreement. In the event of any violation of this section, the non-offending party shall be entitled to immediately terminate this Agreement and take such other actions as are permitted or required to be taken under law or in equity.

6. **WAIVER OF TRIAL BY JURY.** EACH PARTY HEREBY WAIVES, IRREVOCABLY AND UNCONDITIONALLY, TRIAL BY JURY IN ANY ACTION BROUGHT ON, UNDER OR BY VIRTUE OF OR RELATING IN ANY WAY TO THIS AGREEMENT.

7. **Assignment.** Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign this Agreement to an entity that controls, is controlled by or is under common control with that party.

8. **Confidentiality.** The parties agree that the consideration furnished under this Agreement, the discussions and correspondence that led to this Agreement, and the terms and conditions of this Agreement are private and confidential. Except as may be required by applicable law, regulation, or stock exchange requirement, neither party may disclose the above information to any other person or entity without the prior written approval of the other.

9. **Notices.** To be effective, any notices required under this Agreement must be in writing, and be delivered by hand delivery or a nationally recognized overnight courier to the parties at the addresses included below their respective signature blocks below or to such other address as either party may from time to time specify in writing to the other party. Notices will be deemed given when received or when receipt is refused.

10. **State Specific Provisions.** The terms of the attached **Exhibit B** are incorporated into this Agreement, and will control over any contrary terms of this Agreement.

11. **Miscellaneous.** The laws of the state of Washington, without reference to its choice of law rules, govern this Agreement. This Agreement constitutes the entire agreement between the parties relating to the matters discussed herein and may be amended, modified, or waived only with the mutual written consent of the parties. Neither party will be liable to the other party for any lost or prospective profits/rents or any other indirect, consequential, special, incidental, punitive or other exemplary losses or damages, whether in tort, contract or otherwise, regardless of the foreseeability of the cause thereof. If either party employs an attorney to enforce a provision of this Agreement, the prevailing party upon receipt of a final non-appealable judgment will be entitled to recover reasonable attorneys’ fees and costs of litigation from the non-prevailing party. If a provision of this Agreement is held invalid under

applicable law, such invalidity will not affect any other provision of this Agreement that can be given effect. This Agreement may be signed and transmitted electronically.

Executed by Broker and Client as of the Effective Date:

Broker:



Name: Casey Trees

Title: Partner

Date: 2/28/2025

Broker’s Notice Address:

KBC Advisors
5628 Airport Way S
Suite 238
Seattle, WA 98108

Client: Verrus, LLC



Name: Nelson Abramson

Title: Chief Executive Officer

Date: 2/28/2025

Client’s Notice Address:

Verrus, LLC
9301 Wilshire Blvd., Suite 508
Beverly Hills, CA 20210
notices@verrusdata.com

EXHIBIT A

1. Markets:

Detroit MSA

2. **Sale Commissions:**

2.0% (or market standard) of the total sales price, including the amount of any mortgages, loans or other obligations of the Owner that are assumed by the purchaser or which the purchaser takes title "subject to", any purchase money loans or mortgages taken back by the seller, the sales price of any fixtures or other personal property sold by separate agreement between the seller and purchaser as part of the overall sale of the real property, the current market value of any other real or personal property transferred from the purchaser to the seller as part of the sale, and any portion of the purchase price placed in escrow or subject to a holdback as part of the sale.

The seller shall pay any sales commission in full at the closing of the transaction, except, in the case of an installment purchase contract, in which case, the commission shall be earned, due and payable in full at the time of the execution and delivery of the installment purchase contract.

EXHIBIT B

Broker's services shall include the following:

Strategic planning

Definition of client objectives

Demographic analysis

Market research

Consultant selection services – architects, space planning, etc.

Evaluation and selection of qualified buildings, sites and developers

Detailed Request for Proposal preparation

Qualitative and quantitative evaluation of buildings and proposals

Due Diligence on physical site conditions

Investigation and evaluation of government incentives

Determination and evaluation of governmental approval processes

Financial analysis of proposed transaction

Economic negotiations

Documentation management

Contract or lease negotiations (not including legal review)

Lease or document abstract preparation

Continued services during operations